

Diversity, Empathy, and the Scales of Justice: A Study on Race and Criminal Culpability in

Mock-Juror Decisions

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Abstract

Although the U.S. legal system is predicated on impartiality, a growing body of research reveals the persistence of racial disparities in juror decision-making. This study examines the influence of race, social desirability, and age bias on mock juror verdicts, using a national sample of jury-eligible adults recruited via Prolific. Participants evaluated fictional criminal cases in which defendant race was systematically manipulated using validated photographs. The study hypothesized that white jurors would be more likely to convict black defendants following an initial conviction of a white defendant - reflecting an attempt to avoid appearing racially biased. It also predicted the adultification of black defendants through overestimated age judgments. Although results were statistically insignificant, near-significant results suggest trends of participant and defendant race interacting to influence perceived culpability and conviction rates, with trends showing social desirability effects among white jurors. However, in-group bias in non-white jurors was not found due to a racially skewed sample. These findings extend prior research on implicit bias, dehumanization, and empathy gaps in legal contexts. The paper discusses implications for jury selection and trial techniques emphasizing the need for structural mechanisms to mitigate the influence of non-evidentiary factors in legal decision-making.

Keywords: Social desirability, race bias, mock-juror

Diversity, Empathy, and the Scales of Justice: A Study on Race and Criminal Culpability in
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Introduction

The U.S. legal system aspires to be impartial, but mounting empirical evidence suggests that non-evidentiary factors, such as race, continue to influence jury decision-making (Hunt, 2015). While explicit racial discrimination has been legally condemned in juror selection and through instructions to the jury, implicit bias remains deeply ingrained in human perception, subtly shaping juror perceptions, verdicts, and sentencing outcomes. Implicit bias refers to positive or negative mental associations cued spontaneously by social groups (Galvan & Payne, 2024). Prior research has established that racial bias plays a significant role in the treatment of defendants, affecting the likelihood of conviction (Mitchell et al., 2005). A critical question in this field is do jurors, particularly those of different racial backgrounds, respond differently to defendants of different races.

This study builds on existing literature by investigating how race interacts with social desirability bias and juror decision-making. Socially desirable responding is a response bias defined as the tendency to give an answer that makes the respondent look good (Paulhaus, 1991). In the modern, post-black-lives-matter, politically charged atmosphere, this study will examine whether white jurors are more likely to convict black defendants after first convicting a white defendant in a prior case, a response driven by social desirability bias, i.e., to avoid appearing “racist”. Additionally, we assess whether black jurors demonstrate higher acquittal rates for black defendants compared to white jurors and whether jurors incorrectly estimate defendant age based on racial biases, as demonstrated in previous research (Goff et al., 2014).

Prior studies have demonstrated that racial bias influences perceptions of criminal culpability, with black defendants often perceived as more dangerous and less innocent than white defendants. A groundbreaking study from Goff and colleagues (2014), found that black boys as young as ten are perceived as older and more responsible for their actions than their white peers. The study also showed that this phenomenon of arbitrarily assigning greater criminal culpability (defined as dehumanization) extends to adult defendants of color as well, leading to heightened perceptions of criminality and greater judicial punitiveness toward black individuals (Goff et. al., 2014). Additionally, a third study within this project showed that if law enforcement officers scored black individuals with greater criminal culpability (higher rate of dehumanization), they were more likely to overestimate the age of the individual as well leading to harsher treatment in real-world policing. This is because law enforcement officers are more likely to divert young first-time offenders to community resources, but if perceived as older and criminally culpable (dangerous), they are more likely to be arrested and brought to court (Annie E. Casey Foundation, 2020).

Further evidence of racial disparities in the legal system comes from research on jury composition and decision-making. Hunt (2015) conducted a comprehensive review of studies on this topic, highlighting how juror demographics (including variables like race of jurors, age, gender, culture, first language) shape case outcomes. Notably, all-white juries were more likely to convict black defendants than racially diverse juries. Racially diverse juries are juries that have jurors both, from a race different to that of the defendant (outgroup members) and from a race the same as the defendant (ingroup members). They also found black defendants received disproportionately severe punishments, particularly in cases involving white victims. This aligns with findings from Mitchell and colleagues (2005), a meta-analysis of 34 mock juror studies,

which revealed that white jurors gave harsher sentences to black defendants, with a small but statistically significant effect ($d = 0.09$). At the same time, black jurors also exhibited a stronger in-group bias favoring black defendants, suggesting that both white and black jurors are influenced by social identity factors in their verdict decisions.

Building on this, Lynch and Haney (2011) explored empathetic divide in capital sentencing. Professor Craig Haney refers to capital jurors' difficulty understanding mitigating evidence as an "empathic divide," explaining that "a cognitive and emotional distance between [the jurors and the capital defendant] acts as a psychological barrier, making genuine understanding and insight into the role of social history and context in shaping a capital defendant's life course difficult to acquire." (Haney, 2005). Lynch and Haney found evidence that white male jurors were significantly more likely to impose the death penalty on black defendants. Conversely, non-white jurors were more receptive to mitigating factors and less likely to administer the harshest punishments for black defendants. This pattern underscores how racial differences might exist in the ways jurors empathize - or fail to empathize - with defendants based on shared racial identity.

Having recognized the existence of juror bias and the possible ways it influences decision-making; the real issue is the challenge of detecting and mitigating juror bias within the courtroom. Sundquist (2019) analyzed how the legal system has attempted to address racial bias in jury decision-making following *Peña-Rodriguez v. Colorado* (2017), a landmark Supreme Court case that allowed courts to investigate racial bias in juror deliberations. Despite this ruling, courts have struggled to establish clear guidelines for identifying and addressing implicit bias. This legal ambiguity reinforces the importance of empirical research that can shed light on the extent and mechanisms of juror bias, so that techniques might then be developed to prevent it.

This project contributed to this effort by investigating three types of biases arising from factors that are not pertinent to the evidence in the case, specifically the effect of active versus passive language in criminal reports; the effect of race of the defendant, as it interacts with participant race, and estimated age of the defendant; and lastly the effect of participant mood/emotion coming into the courtroom, operationalized using emotion arousing (happy/angry) music clips.

This paper will focus specifically on study two, the effect of race. The implicit race bias study sought to extend the findings about dehumanization and adultification of black individuals from Goff and colleagues to a jury decision-making context by examining whether mock jurors, particularly those of a different race than the defendant, also misjudge age based on racial biases, since such decisions can have drastic real-world consequences for minority communities. Since this study was conducted online, it also investigated whether the in-group bias found by Mitchell and colleagues (2005) were replicated on an individual level, rather than as a jury group. Lastly, this study also further investigated empathetic divide in sentencing by examining how juror race influences conviction patterns in a more general criminal setting, rather than focusing solely on capital cases. Especially, by providing criminal records and court notes on mitigating factors, this study sought to provide all possible legal details that would counteract the race effect, thereby allowing any observed biases to be reliably racially motivated.

To explore these issues, we conducted a national study using jury-eligible adult participants recruited via Prolific. Participants were primed as mock jurors and told to evaluate one to two separate cases, each featuring a defendant whose race (black or white) is manipulated using validated images from the Chicago Face Database. This study hypothesizes that white jurors will be more likely to convict black defendants in the second case if they first convicted a

white defendant in the first case, as a means of fulfilling social desirability bias. Additionally, this study predicts that black jurors will be more likely than white jurors to acquit black defendants. Finally, based on findings from Goff and colleagues (2014), we expect non-black jurors to more frequently misjudge the ages of black defendants, perceiving them as older and more culpable than they are.

By investigating these patterns, this study aims to provide a nuanced understanding of how race and implicit bias shape juror decision-making. In doing so, this study contributes to the broader discourse on racial disparities in the criminal justice system and offers insights that may inform future policy efforts aimed at reducing bias in legal proceedings.

Methods

Participants

132 participants were recruited via Prolific and were screened to ensure they were adult US Residents. Participants were disproportionately white ($n = 96$), and equally balanced in terms of gender. They were compensated \$4.50 for completing the survey as advertised in the recruitment message on Prolific.

Procedure

Participants completed an online Qualtrics survey where they completed three related studies. First, participants reviewed a standard minimal-risk consent form, and if they consented to participate, they filled out an initial questionnaire, with basic demographic questions as well as baseline emotional valence and arousal measures. The emotional valence and arousal measures were completed through the Positive and Negative Affect Scale-Shortened Form (PANAS-SF). A 20-item PANAS was filled following the demographic questions and a 10-item PANAS was presented at the completion of parts 1 and 2 (Appendix I). Participants went through the

following three parts of the study investigating the influence of linguistic, race and emotional stimuli in implicitly biasing the participant towards acquitting or convicting a defendant of criminal activity, while controlling for other factors. Lastly, they completed a second demographic survey, where we asked them questions regarding their L1/L2 language and prior experience/knowledge of law/jury settings to note in case of outliers due to differences in experience/language background. The conclusion of this survey was followed by the debrief, explaining what was being studied.

Study One: Language Bias

Participants were randomly assigned to read one of two case examples (active or passive voice) and asked to respond to questionnaires to determine responsibility attribution. Inspired by Henley et al. (1995), the articles were pulled from *the Boston Globe* website and describe domestic violence in heterosexual couples. The race of the perpetrator was controlled across both conditions.

Measures. Degree of harm against the victim was rated on a five-point Likert scale and attribution of responsibility for both perpetrator and victim/survivor were on a seven-point Likert scale. To establish the perceived harshness of consequences, we used a 7-point Likert scale (Lamb and Keon 1995) to rate the possible consequences for a man who had committed abuse towards his significant other (1 = least severe, 7 = most severe). And finally, participants were asked to respond to a crime familiarity questionnaire (0 = no degree of familiarity, 10 = high familiarity).

Study Two: Race Bias

Participants were randomly assigned to one of three groups for this task, inspired by Salerno et al. (2023).

In Groups A and B, participants read two criminal reports each. Both reports were non-violent misdemeanors with a young male suspect. However, in Group A, the first defendant was white and the second defendant was black. In Group B, first defendant was black, and second defendant was white. This order of case reports remained consistent in both Group A and Group B, to test social desirability bias (Salerno, 2023). In Group C, participants read only one case report of a non-violent misdemeanor offense where the defendant was a black male.

All criminal reports are made up of two components –

1. A comprehensive report that a) describes the incident and b) includes arguments from the court (prosecutor and defense). See Appendices C and D.
2. When they scrolled down, they saw a criminal records sheet for the defendant describing 1-2 prior charges, which also contained a picture. See Appendices A and B, as well as Tables 1 and 2.

All criminal reports and defendant records were fictional, and cited VA criminal code. All pictures had been chosen from the Chicago Face Database (Ma, Correll & Wittenbrink, 2015). All three images chosen had a mean age rating of 18, which allowed us to measure implicit race bias in the adultification of black males (Goff et al., 2014).

After reviewing each report for a mandatory, sufficient period participants were allowed to click next and complete two tasks, between which they were asked to make a judgement on the case. Since it takes the average person 1 minute to read 238 words, they spent at least 1.5 minutes per criminal report before they had the option to move forward.

Before progressing to the questions for each defendant, participants were asked to complete a simple attention task – asking them to select from multiple choices the charge against

the defendant. If they got it right, they moved on to the next question, if they didn't, they had to review the case report before they could progress to the questions.

The first question was an age assessment, where participants were asked to estimate the age of the defendant – this was intended to serve as a buffer against the explicit focus on race in this task. Next, they were asked to decide whether they would acquit or convict the defendant based on provided evidence. Last, they responded to four questions corresponding to the novel culpability metric on a five-point Likert scale developed by Goff et al. (2014) which has a reliability of $\alpha = .71$. On this scale, higher values indicated higher criminal culpability. Items included questions like, “How likely is he to persist in these negative behaviors?”, with 1 = very unlikely, to 5 = very likely.

Participants assigned to Group A or B repeated this once again for a second case report with a black defendant, and participants assigned to Group C moved to Part 3.

The records and reports in both Group A and B were identical, with the only difference being whether they see one white and one black defendant (Group A), or two black defendants (Group B). Group C served as the control group and reviewed only one defendant.

Study Three: Situational/Context Bias

Prior to the beginning of Part 3, participants were asked to complete a buffer task of finding and selecting the differences between two images on a screen. Participants then were randomly assigned to a 20-second segment of music with the purpose of either inducing joy or anger. Following this audio segment, participants were asked to once again report their affect through the 10-item PANAS. Upon completion of this exercise the participants were faced with a total of three gender-neutral profiles and the crime that the individual is being charged with, one of which was violent and two non-violent crimes. The participants, regardless of music heard,

were presented with a scale to rate their suspicion of the individual's guilt and the severity of the punishment that the individual should receive in that case. Additionally, they reported their feelings toward the defendant, specifically their anger and their pity for the individual. A final check was presented asking participants to confirm if they listened to the audio section.

Results

This section will focus on the results from Study 2: Race Bias. This study examined whether the race of a defendant influences participant evaluations of criminal culpability in a mock juror context. Participants were randomly assigned to one of three experimental Race Groups (Group A, B, or C), each representing a different order or combination of case presentations involving Black and White defendants. The primary outcome was a criminal responsibility score (range: 4–20), derived from participants' responses to four items assessing perceived culpability. The between-subjects factors included participant race (White or Non-White) and Race Group, while order of case presentation was included as a within-subjects factor in a mixed-model analysis.

Sample Characteristics

A total of 132 jury-eligible U.S. adults participated in the study. Participants were disproportionately white ($n = 96$), with the remainder identifying as Black ($n = 13$), Asian ($n = 9$), Hispanic ($n = 7$), or multiracial/other ($n = 6$). Due to this distribution, all non-white participants were collapsed into a single "non-white" group ($n = 36$) for analyses involving participant race. Participants were randomly assigned to one of three experimental groups: Group A (white defendant followed by Black defendant), Group B (two Black defendants), or Group C (single Black defendant only).

Verdict Patterns by Defendant Race***Group A: White Defendant followed by Black defendant***

In Group A, participants first evaluated a white defendant and then a Black defendant. For the white defendant, 79.5% of participants returned a not guilty verdict, while 20.5% returned a guilty verdict. For the Black defendant, not guilty verdicts decreased to 70.5%, with guilty verdicts rising to 29.5%. Notably, all guilty verdicts for the white defendant were given by white participants, while non-white participants acquitted the white defendant in every instance. Refer to Figure 1 for-verdict graphs for defendant 1, and Figure 2 for verdict graphs for defendant 2.

Group B: Two Black Defendants

Participants in Group B evaluated two black defendants sequentially. For the first defendant, 87.5% of participants rendered a not guilty verdict, while 12.5% found the defendant guilty. However, for the second Black defendant, the guilty verdict rate increased to 42.5%. This marked increase suggests a potential order effect, in which social desirability motivations may have been attenuated after evaluating a same-race defendant first. However, more statistical tests would be required to confirm the same.

Group C

Group C participants evaluated only one Black defendant, yielding a guilty verdict rate of 33.3%. This rate falls between the guilty rates observed for Black defendants in Groups A and B, providing a benchmark for interpreting sequential case effects.

Culpability Ratings for Defendant 1

A two-way between-subjects ANOVA was conducted to examine the effects of participant race (White vs. Non-White) and defendant race (White vs. Black) on criminal responsibility scores for the first defendant. Results indicated no significant main effect of participant race, $F(1, 80) = 0.28, p = .599, \eta^2 = .00$, or defendant race, $F(1, 80) = 0.04, p = .842, \eta^2 = .00$. The interaction between participant race and defendant race was also not significant, $F(1, 80) = 1.49, p = .225, \eta^2 = .02$. More details are found in Table 3, and Figure 3 shows the visualization for this variance.

To further explore whether misperceptions of defendant age may have contributed to these results, a three-way ANOVA was conducted including age estimation accuracy as a third factor. This model also failed to yield significant main effects or interactions. The interaction between participant race and defendant race approached significance, $F(1, 107) = 2.18, p = .143, \eta^2 = .02$, indicating a possible trend wherein racial dynamics and age estimation may jointly influence culpability judgments. More details are found in Table 4, and Figure 4 shows the visualization for this variance.

Culpability Ratings for Defendant 2

For the second defendant (Black across all groups), a separate two-way ANOVA was conducted to examine the effects of participant race and experimental group (Group A, Group B, or Group C) on criminal responsibility scores. Neither the main effect of participant race, $F(1, 120) = 0.15, p = .695, \eta^2 = .00$, nor the main effect of race group, $F(1, 120) = 1.08, p = .344, \eta^2 = .02$, were statistically significant. However, the interaction between participant race and race group approached significance, $F(1, 120) = 1.86, p = .161, \eta^2 = .03$. More details are found in Table 5, and Figure 5 shows the visualization for this variance.

In a subsequent three-way ANOVA that included age accuracy as a covariate, the main effect of race group on culpability ratings approached significance, $F(1, 145) = 3.01, p = .052, \eta^2 = .04$. The interaction between participant race and race group remained non-significant but continued to show a trend toward interaction, $F(1, 145) = 2.29, p = .105, \eta^2 = .03$. More details are found in Table 6, and Figure 6 shows the visualization for this variance.

Summary of Findings

Although no statistically significant main effects or interactions were found, multiple patterns emerged that support theoretical expectations. Participants in Group A were more likely to convict a Black defendant after first evaluating a white defendant, suggesting possible social desirability effects. In contrast, participants in Group B, who evaluated two Black defendants, returned the highest rate of guilty verdicts for the second defendant, potentially due to the absence of racial contrast in the first evaluation. These trends, while inconclusive, warrant further investigation into how sequential exposure and juror race interact with perceptions of culpability.

Discussion

This study aimed to investigate whether race, social desirability, and perceived age bias influence mock juror decision-making, building on prior work by Goff et al. (2014), Mitchell et al. (2005), and Salerno et al. (2023). While our hypotheses were not supported at a statistically significant level, several trends emerged that provide important groundwork for future research.

As hypothesized, white participants in Group A – who evaluated a white defendant first and a Black defendant second – exhibited a modest increase in guilty verdicts for the Black defendant. This pattern aligns with the proposed mechanism of social desirability, in which jurors may seek to demonstrate impartiality by “balancing” their decisions. However, the results from Group B, in which participants evaluated two Black defendants, revealed a stronger increase in conviction rates for the second defendant. This trend potentially reflects a diminished concern for appearing racially biased when race remains consistent across both evaluations, supporting findings by Salerno et al. (2023) that social desirability may act as a suppressor of implicit bias in racially heterogeneous cases.

However, contrary to expectations and to findings by Mitchell et al. (2005), non-white jurors did not exhibit a strong in-group acquittal bias. This may be due to sample imbalance—non-white participants constituted only 27% of the total sample, limiting statistical power to detect effects across racial subgroups. Similarly, although past research has demonstrated that Black defendants are often perceived as older than they are (Goff et al., 2014), this study did not find a significant main effect of race on age estimation accuracy, though this variable’s interaction with perceived culpability approached significance. These near-significant findings suggest possible subtle effects that may be obscured by sample size limitations or by the online nature of the mock jury context.

It is worth noting that while all participants were presented with legally detailed and balanced case materials - including criminal records and mitigating evidence - the presence of trends in conviction rates based on defendant race supports the notion that juror decisions may still be influenced by race-related biases even in the presence of countervailing legal cues. This aligns with Lynch and Haney's (2011) theory of the "empathic divide," wherein jurors may struggle to empathize with defendants who do not share their racial or social identity, even when presented with individualized context.

Finally, the interaction effect between participant race and case order on culpability judgments, though statistically non-significant, points to the need for further investigation into how jurors frame decision-making in sequential trials and how prior judgments shape later assessments.

Future Directions

This study contributes to a growing body of literature suggesting that juror evaluations are shaped by more than just case evidence; social desirability, racial identity, and age biases seem to play a role, albeit subtly in this dataset. Future studies should consider expanding sample diversity to allow more robust subgroup comparisons, particularly between white, black, and other racially minoritized participants. An adequately powered sample would make it possible to detect smaller effect sizes and explore in-group bias with greater accuracy.

Additionally, real-world jury deliberations occur in group settings, not in isolation. Future research should replicate these procedures using group deliberation tasks to better understand how racial composition and peer dynamics influence juror behavior. The inclusion of mixed-race juries could provide a more ecologically valid test of the "empathic divide" and the potential moderating effect of group identity salience (Hunt, 2015).

Moreover, while this study attempted to simulate legal realism by providing full case records and court notes, the use of static images and brief text descriptions limits emotional engagement. Incorporating audio-visual materials or virtual reality courtrooms could yield richer data on emotional and behavioral responses. Finally, longitudinal studies that track whether jurors' biases shift after repeated exposure to racially diverse cases or implicit bias interventions would add to the policy relevance of these findings.

In sum, although this study did not yield statistically significant outcomes, the observed trends – especially in culpability scoring – underscore the importance of continued inquiry into how race and social cognition intersect within the courtroom. Understanding and mitigating these biases remains a critical challenge for ensuring equity in the justice system.

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Tables

Table 1

Defendant 1 (Group A and B)

Group A – White Defendant (James Carter)	Group B – Black Defendant (James Carter)
	
CFD-WM-217-070-N; Mean age rating: 18.73	CFD-BM-201-077-N, Mean age rating: 18.27
<i>Note.</i> All images are standardized and sourced from the Chicago Face Database.	

Table 2

Defendant 2

Case 2 – Black Defendant (Daniel Matthews)

CFD-BM-201-077-N, Mean age rating: 18.27

Note. All images are standardized and sourced from the Chicago Face Database.

Table 3

Two-Way ANOVA for Culpability Ratings of Defendant 1 by Participant Race and Defendant

Race

	Predictor	df _{Num}	F	p	η^2_g
	PartRace	1	0.28	.599	.00
	DefRace	1	0.04	.842	.00
	PartRace	1	1.49	.225	.02
x	DefRace				

Note. Criminal culpability was measured on a 4–20 scale. η^2 represents generalized eta-squared.

Table 4

Three-Way ANOVA for Defendant 1: Participant Race, Defendant Race, and Age Estimation

Accuracy

Predictor	df _{Num}	F	p	η^2_g
PartRace	1	0.00	.970	.00
DefRace	1	0.08	.783	.00
AgeAccuracy	1	1.46	.230	.01
PartRace x DefRace	1	2.18	.143	.02
PartRace x AgeAccuracy	1	0.26	.609	.00
DefRace x AgeAccuracy	1	2.06	.154	.02
PartRace x DefRace x AgeAccuracy	1	0.11	.744	.00

Note. Criminal culpability was measured on a 4–20 scale. η^2 represents generalized eta-squared.

Table 5

Two-Way ANOVA for Defendant 2: Participant Race and Race Group

Predictor	df _{Num}	F	p	η^2_g
PartRace	1	0.15	.695	.00
RaceGroup	1	1.08	.344	.02
PartRace x RaceGroup	1	1.86	.161	.03

Note. Higher values indicate greater criminal culpability. η^2 = generalized eta-squared

Table 6

Defendant 2: ANOVA for Criminal Culpability ~ Participant Race, RaceGroup, AgeAccuracy

Predictor	df _{Num}	F	p	η^2_g
PartRace	1	0.02	.897	.00
RaceGroup	1	3.01	.052	.04
AgeAccuracy	1	1.17	.280	.01
PartRace x RaceGroup	1	2.29	.105	.03
PartRace x AgeAccuracy	1	0.27	.603	.00
RaceGroup x AgeAccuracy	1	0.21	.811	.00
PartRace x RaceGroup x AgeAccuracy	1	1.14	.324	.02

Note. η^2 = generalized eta-squared.

Figures

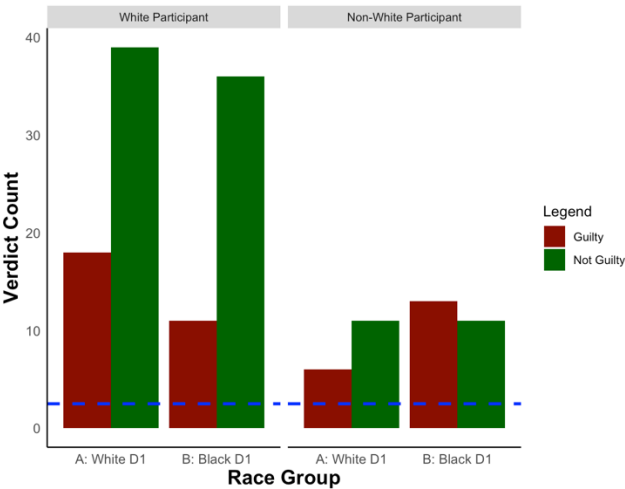


Figure 1. Verdicts for Defendant 1

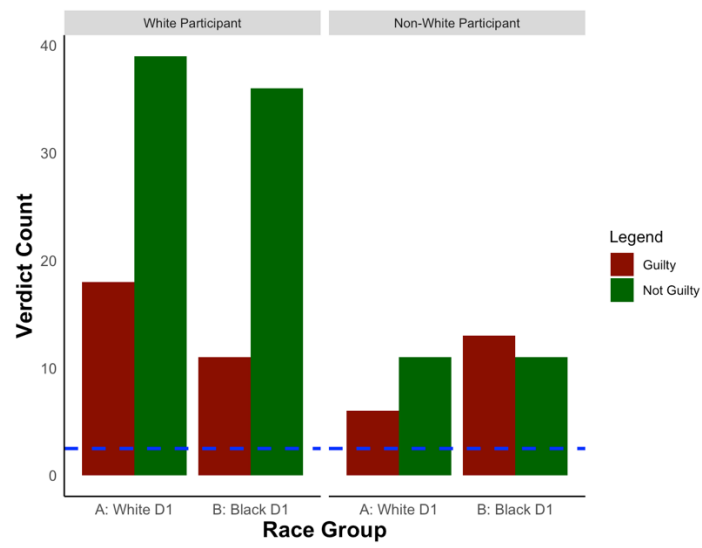


Figure 2. Verdicts for Defendant 2

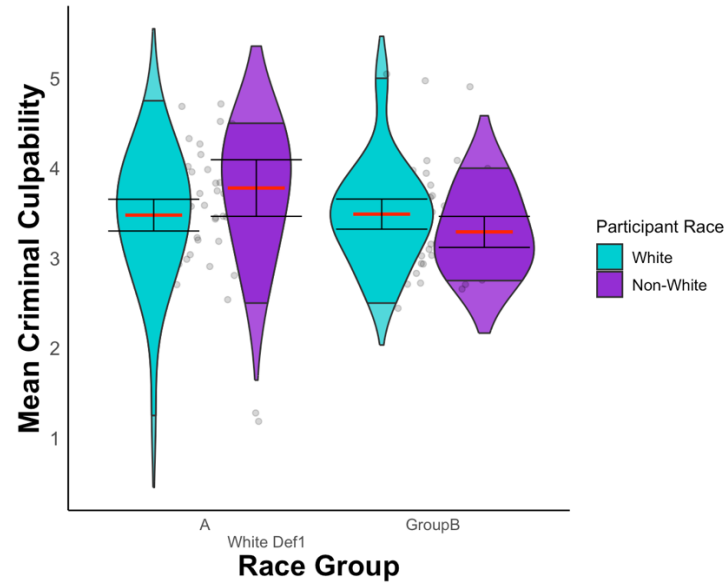


Figure 3. Mean Criminal Culpability Ratings of Defendant 1 by Participant Race and Defendant

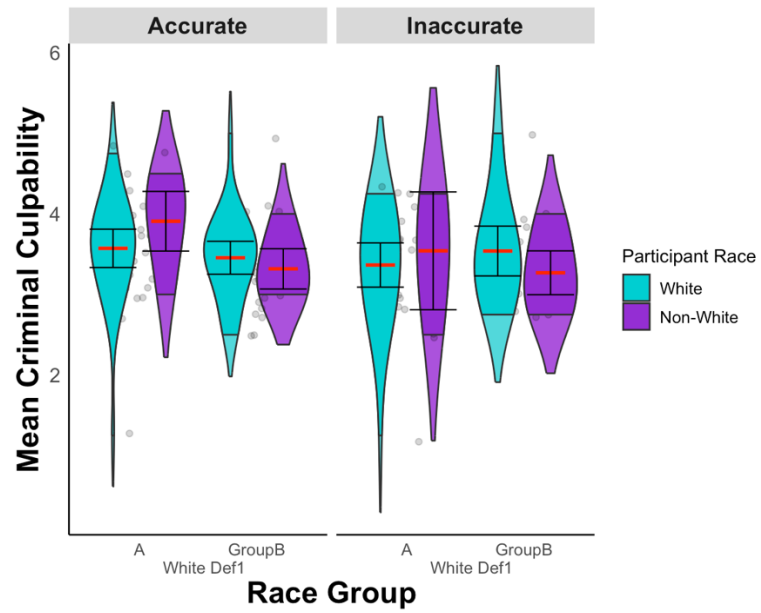


Figure 4. Mean Criminal Culpability Ratings of Defendant 1 by Participant Race, Defendant Race and Age Accuracy

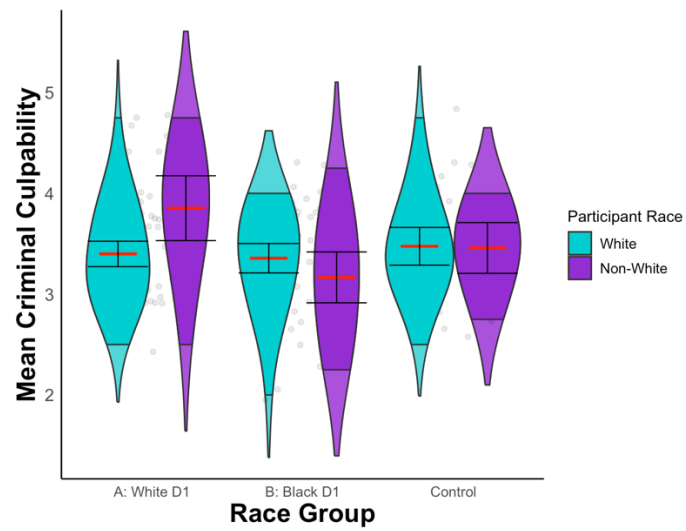


Figure 5. Mean Criminal Culpability Ratings of Defendant 2 by Participant Race and Race Group

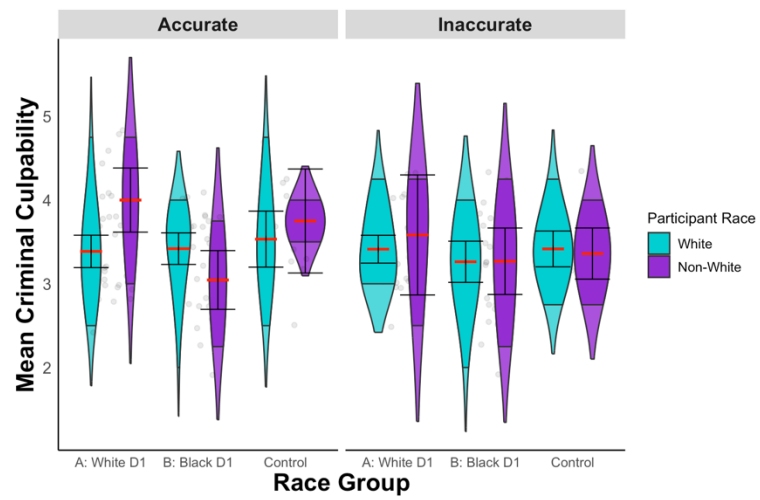


Figure 6. Mean Criminal Culpability Ratings of Defendant 2 by Participant Race, Race Group and Age Accuracy

Appendices

Appendix A

Defendant One Criminal Report

CRIMINAL CASE COVER SHEET

By: ☒ INDICTMENT ☐ SUPERSEDING Case Number: _____	
☐ INFORMATION (Requires AO 455 Waiver of Indictment for Felony Cases)	
☐ RULE 20	
VA v. <u>James Carter</u>	
☐ Felony ☒ Class A Misdemeanor (AO86A Consent form required at Initial Appearance) ☐ Misdemeanor (Not class A) ☐ Petty Offense	
☐ Defendant is being added to existing criminal case ☐ Immigration Cases ☐ Charges/Counts Added ☐ Zone A ☐ Zone B	
Name of Assigned AUSA: _____	
Matter Sealed: ☐ YES ☒ NO	Place of Offense: <u>Lexington, VA</u>
☐ Interpreter Required Language: _____	
Issue: ☐ WARRANT ☒ SUMMONS ☐ WRIT (Motion to be filed)	
Arresting Agency: ☐ DEA ☐ ATF ☐ USMS ☐ FBI ☐ Other: <u>Lexington Police</u>	
Current Trial Date (if any): <u>6/14/2025</u> before Judge <u>Roberts</u>	
☒ Criminal Complaint Filed	Case Number: <u>GC25007987-00</u>
☐ Defendant on Supervised Release	Case Number: _____
Related Case/Attorney:	
Case Number _____	Attorney _____
Reason for Related Case Determination _____	
Defense Counsel (if any): <u>Mary Bell, RCPD</u>	
☒ Public Defender ☐ CJA ☐ Retained	
Appointed by Target Letter	Case Number: _____
Appointed in Pending Indictment	Case Number: _____

CHARGES: Total # of Counts for this Defendant 1

	Title & Section	Description of Offense Charged	New Count? Y or N	New Count #	Old Count #
	VA Code § 18.2-96	Petit Larceny	Y	1	
	VA Code § 18.2-174	Impersonating law enforcement	N		1
	VA Code § 18.2-181	Issuance of Bad Checks	N		1

(Attach additional page, if needed)

Attorney Signature Mary Bell

Appendix B

Defendant Two Criminal Report

CRIMINAL CASE COVER SHEET

By: ☒ INDICTMENT ☐ SUPERSEDING Case Number: _____	
☐ INFORMATION (Requires AO 455 Waiver of Indictment for Felony Cases)	
☐ RULE 20	
VA v. <u>Daniel Matthews</u>	
☐ Felony ☒ Class A Misdemeanor (AO86A Consent form required at Initial Appearance) ☐ Misdemeanor (Not class A) ☐ Petty Offense	
☐ Defendant is being added to existing criminal case ☐ Zone A ☐ Zone B ☐ Charges/Counts Added	
Name of Assigned AUSA: _____	
Matter Sealed: ☐ YES ☒ NO	Place of Offense: <u>Lexington, VA</u>
☐ Interpreter Required Language: _____	
Issue: ☐ WARRANT ☒ SUMMONS ☐ WRIT (Motion to be filed)	
Arresting Agency: ☐ DEA ☐ ATF ☐ USMS ☐ FBI ☐ Other: <u>Lexington Police</u>	
Current Trial Date (if any): <u>6/14/2025</u> before Judge <u>Roberts</u>	
☒ Criminal Complaint Filed	Case Number: <u>GC25002892-00</u>
☐ Defendant on Supervised Release	Case Number: _____
Related Case/Attorney:	
Case Number _____	Attorney _____
Reason for Related Case Determination _____	
Defense Counsel (if any): <u>Mary Bell, RCPD</u>	
☒ Public Defender ☐ CJA ☐ Retained	
Appointed by Target Letter	Case Number: _____
Appointed in Pending Indictment	Case Number: _____

CHARGES: Total # of Counts for this Defendant 1

Title & Section	Description of Offense Charged	New Count? Y or N	New Count #	Old Count #
VA Code § 18.2-266	DUI	Y	1	
VA Code § 18.2-460	Obstructing Justice	N		1

(Attach additional page, if needed)

Attorney Signature Mary Bell

Appendix C

Case Summary: Commonwealth of VA v. James Carter

Charge: Petit Larceny (Va. Code § 18.2-96)

Incident Report by Officer D. Reynolds

On January 10, 2025, at approximately 4:45 PM, store owner Mark Lewis reported a theft at QuickMart on Main Street. Mr. Lewis stated that a young male took two electronic accessories valued at \$48.99 each and exited without paying. He described the suspect as a young male, wearing a dark hoodie and jeans.

Security footage, though grainy, shows a male fitting this description near the electronics aisle at 4:38 PM. The suspect's face is partially obscured, and the footage does not clearly show the theft. Witness Nancy Palmer, a cashier, stated she saw "someone in dark clothing" leave in a hurry but could not confirm if he stole anything.

Based on prior knowledge, I (Officer Reynolds) was aware that James Carter, who has been seen in the area, matches the general description. I visited his residence the next day and questioned him. Carter denied being at QuickMart on the day of the incident. No stolen items were found in his possession.

Court Arguments

Prosecution (State's Argument):

- The suspect in the security footage matches James Carter's general build and clothing.
- The store owner and a cashier observed a young man leave hastily, fitting Carter's description.
- Carter has been seen in the area frequently.

Defense Argument:

- The security footage is unclear and does not conclusively show Carter committing theft.
- No physical evidence links Carter to the stolen items.
- Witness testimony is vague and does not identify Carter with certainty.
- Carter has an alibi stating he was at home during the alleged theft.

Appendix D

Case Summary: Commonwealth of VA v. Daniel Matthews

Charge: Driving Under the Influence (DUI) (Va. Code § 18.2-266)

Incident Report by Officer J. Caldwell

On February 3, 2025, at approximately 11:15 PM, I (Officer Caldwell) responded to a report of a vehicle found partially on the shoulder of Route 56 near Oakwood Drive. The vehicle, a silver Honda Civic, was unoccupied when I arrived. The engine was off, but the keys were still in the ignition.

A short time later, Daniel Matthews approached the scene on foot from a nearby gas station. He stated that he had been driving earlier but left to get assistance after experiencing car trouble. I detected the odor of alcohol on his breath and observed slightly slurred speech. When questioned, Matthews admitted to having "a couple of beers" but claimed he drank them after parking the car.

Standard field sobriety tests were not conducted, as Matthews was not stopped while driving. A breathalyzer test was administered at 12:05 AM, approximately 50 minutes after the initial report, showing a BAC of 0.09%.

Court Arguments**Prosecution (State's Argument):**

- Matthews admitted to driving the vehicle earlier that night.
- His BAC was above the legal limit when tested.
- The officer observed signs of intoxication, including the smell of alcohol and slurred speech.

Defense Argument:

- There is no direct evidence proving Matthews was intoxicated while operating the vehicle.
- The BAC test was conducted nearly an hour after the vehicle was found, during which Matthews claims he consumed alcohol.
- No witnesses saw him driving under the influence.
- Field sobriety tests were not performed.